

		<i>Court</i> (1984) 156 Cal.App.3d 52, 56 (“Absent an agreement or statute, a party is generally precluded from recovery of attorney fees.”); <i>Reynolds Metals Co. v. Alperson</i> (1979) 25 Cal.3d 124, 127.) A plaintiff is not required to specifically plead its request for attorneys’ fees under Section 1021.5, and a court may not strike such a request based on a failure to plead its basis. (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497 (“As there was no requirement they be pled at all, the trial court erred in striking [the plaintiff’s] prayer for attorney’s fees [under Section 1021.5] based on a failure to adequately plead their basis”). Defendants seek to strike Paragraph 13, Page 4:26-27: “The LEASE has a mandatory mediation clause and a prevailing party attorney's fees provision.” Defendants have not carried their burden of showing that this sentence is irrelevant, false, or improper. (Code Civ. Proc. § 436.) The fact that Defendants may not be signatories to the lease does not make this sentence false. Defendants also seek to strike Paragraph 8, Page 17:21-22: “For attorney’s fees pursuant to the LEASE, applicable causes of action, and California Code of Civil Procedure section 2021.5.” Defendants have not shown that this request is irrelevant, false, or improper. (Code Civ. Proc. § 436.) The motion to strike is denied. Plaintiffs shall give notice of this ruling.
8	Kimes vs. Rich	TENTATIVE RULING: <u>Motion to Bifurcate Trial</u> For the reasons set forth below, Defendants Rayco Construction Enterprises, Inc. dba Rayco Exteriors; T.S.G. Independent Property Management, Inc.; Beacon Hill Terrace Condominium Homeowners Association; Rich Carroll; and Design Build Associates, LLC’s motion to bifurcate trial such that the issue of liability is tried before the issue of damages is GRANTED. “The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order ... that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case” (Code Civ. Proc, § 598.) “The court, in furtherance of

		convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues” (<i>Id.</i>, § 1048, subd. (b).) “It is within the discretion of the court to bifurcate issues or order separate trials of actions ... and to determine the order in which those issues are to be decided.” (<i>Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.</i> (2002) 100 Cal.App.4th 193, 205.) Defendants contend bifurcation is warranted because separating of liability and damages will promote judicial economy. Whether a dangerous condition existed, whether there was notice of the dangerous condition, and comparative fault are discrete issues to be determined in connection with liability. If there is no liability, then damages will not have to be addressed. The jury will not be bogged down with damages issues when determining if there is liability. Defendants assert that the evidence concerning damages is extensive. (Whirl Decl. ¶¶ 6-7, Exhs. A-B.) Additionally, Defendants contend the sympathy generated by Plaintiff’s injuries may distract and prejudice the jury. Defendants argue that bifurcating liability will ensure Defendants are not prejudicially impacted by testimony that has no bearing on whether there is any liability. Determining liability prior to starting the damages phase may save a substantial amount of time and expense if the jury finds that there was no dangerous condition or that Defendants did not have notice of the dangerous condition. Plaintiff did not file an opposition. The motion is granted. Defendants to give notice.
9	Martinez vs. AN SCPB, LLC	TENTATIVE RULING: For the reasons set forth below, the motion by Defendant An SCPB, LLC for sanctions in the form of an adverse inference jury instruction against Plaintiff Haley Martinez is DENIED without prejudice. <u>Statement of Law</u> The court may impose sanctions on any party engaging in the misuse of the discovery process. (<i>See</i> Code Civ. Proc., § 2023.030.) Disobeying a court order to provide discovery is a misuse of the